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In the
Supreme Court of the United States
October Term, 1995

PETE WILSON, Governor of California, *et al.*,
Petitioners,

v.

VOTING RIGHTS COALITION, *et al.*,
Respondents.

PETE WILSON, Governor of California, *et al.*,
Petitioners,

v.

JANET RENO, U.S. Attorney General, *et al.*,
Respondents.

Petition for Writ of Certiorari to the United States Court of
Appeals for the Ninth Circuit

AMICUS CURIAE BRIEF OF PACIFIC LEGAL FOUNDATION
AND THE STATES OF ARIZONA, IDAHO, NEW HAMPSHIRE,
AND SOUTH CAROLINA IN SUPPORT OF PETITIONERS

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IN SUPPORT OF PETITIONERS**

INTEREST OF AMICI CURIAE

Pacific Legal Foundation (PLF) is a nonprofit, tax-exempt corporation organized under the laws of the State of California for the purpose of litigating in the public interest. PLF has nearly 25,000 supporters nationwide. Policy for

PLF is set by a Board of Trustees composed of concerned citizens, many of whom are lawyers. PLF's Board of Trustees evaluates the merits of any contemplated legal action and authorizes such legal action only when the Foundation's position has broad support within the general community. PLF's Board of Trustees has authorized the filing of an amicus curiae brief in this matter.

PLF has participated in numerous cases concerning the Tenth Amendment and limitations upon Congress' Article I powers. For example, PLF participated as amicus curiae before this Court in *Hodel v. Virginia Surface Mining and Reclamation Association, Inc.*, 452 U.S. 264 (1981).

Amicus seeks to augment the argument in the petition for writ of certiorari. PLF believes that its public policy perspective and litigation experience dealing with state sovereignty issues will provide an additional viewpoint with respect to the constitutional and legal issues presented. Pursuant to Rule 37.2, written permission from all parties for PLF to file this brief has been lodged with the Clerk of the Court.

Amici, the States of Arizona and Idaho are not involved in litigation related to the National Voting Rights Act of 1993. However, as two of the 50 sovereign states, they have a vital interest in having this Court resolve the significant state and federal sovereignty issues raised by this appeal.

Amicus, the State of New Hampshire, is in a position to be affected directly by the outcome of this litigation. New Hampshire has been named a defendant in an action brought by private litigants for its alleged noncompliance with the National Voting Rights Act of 1993 despite its having adopted an effective, less cumbersome and costly system of election day registration. *League of Women Voters of New Hampshire v. Merrill*, Civ. No. 95-232-M (D.N.H. filed May 2, 1995). New Hampshire is defending this District Court action on grounds which include that the National

Voting Rights Act violates the division between state and federal sovereignty embodied in the Tenth Amendment to the United States Constitution and that it exceeds Congress' Article I, Section 4, elections power.

Amicus, the State of South Carolina, stands to be affected directly by the outcome of this litigation. South Carolina has challenged the constitutionality of the National Voting Rights Act of 1993 in *Condon v. Reno*, Civ. No. 3:95-1992-0 (D.S.C. filed Jan. 24, 1995). The District Court recently ruled against South Carolina in that case, and South Carolina has appealed to the Court of Appeals for the Fourth Circuit, but it is unlikely that the Fourth Circuit will rule before the present petition is decided upon.

STATEMENT OF THE CASE

Amicus adopts herein petitioner's Statement of the Case.

SUMMARY OF ARGUMENT

The true "essence" of federalism is that the States as States have legitimate interests which the national government is bound to respect even though its laws are supreme. If federalism so conceived and so carefully cultivated is to remain meaningful, this Court cannot abdicate its constitutional responsibility to oversee the Federal Government's compliance with its duty to respect the legitimate interests of the States.

Garcia v. San Antonio Metropolitan Transit Authority, 469 U.S. 528, 581 (1985) (O'Connor, J., dissenting) (citation omitted; emphasis in original). This case squarely presents the question of whether the federal government may,

consistent with federalism principles, conscript state officials and order them to spend state funds in a manner different from that directed by their sovereign state governments.

The Ninth Circuit upheld the National Voting Rights Act of 1993 (NVRA) against a Tenth Amendment challenge by Governor Wilson of California. The court found that federalism principles do not prevent Congress from forcing state agencies to engage in activities outside the scope of state legislation. It further found that the Times, Places and Manner power enumerated in Article I, Section 4, of the Constitution gives Congress the power to interfere in the internal administration of state government for the purpose of regulating federal elections, and that Tenth Amendment considerations relevant to Congress' commerce powers do not apply in the context of Congress' election powers.

The brief opinion does not adequately address the sovereignty considerations raised by Governor Wilson, instead finding in Article I, Section 4, the equivalent of a "plain statement" that the Framers intended the federal government to interfere in state government where that interference is related to federal elections. Such a cursory analysis disserves the Constitution and the careful thought and debate that crafted the balance of power between the federal government and the states in that document.

Resolution of this issue by this Court is of vital interest to the states. California is not alone among the states in its legal challenge to NVRA. To date, amicus is aware that Illinois, Michigan, Mississippi, New Hampshire, Pennsylvania, South Carolina, and Virginia are currently or have been involved in litigation related to provisions of NVRA. At least four of these states have mounted facial challenges to the act. This Court should reinforce the principle that states are *independent* sovereigns, and that no federal power, however supreme, can divest them of this attribute.

**REASONS FOR GRANTING THE
PETITION FOR WRIT OF CERTIORARI**

I

**THIS COURT SHOULD ESTABLISH THAT
CONGRESS LACKS THE POWER TO REQUIRE
STATE AGENCIES TO CARRY OUT
FEDERAL REGULATORY PROGRAMS**

Voter registration in California is exceedingly simple. One need only fill out a postcard attesting to one's right to vote (Cal. Elec. Code § 500). A fixed address is unnecessary, and postcards are freely available to anyone who requests one from the county registrar of voters (Section 507). Affixing postage to the preaddressed cards is unnecessary (Section 510). During election cycles, Californians cannot go to a supermarket or shopping mall without being accosted by privately paid individuals or volunteers who see it as their duty to register every shopper. Apparently dissatisfied that portions of the electorate have neglected to exert this minimal amount of effort, Congress concluded that voters should be registered despite their passivity, and enacted the National Voting Rights Act of 1993 (42 U.S.C. §§ 1973gg to 1973gg-10).

NVRA requires that state motor vehicle licensing agencies serve as voter registration agencies (42 U.S.C. § 1973gg-3). States are required to modify driver's license applications to serve the dual purpose of voter registration (Section 1973gg-3(a)(1)). The voter registration portion of the form may not duplicate information requested for the driver's application portion (Section 1973gg-3(c)(2)(A)), and it may not require more information than that needed to prevent duplicate registration or to assess the applicant's

eligibility to vote (Section 1973gg-3(c)(2)(B)); further, the form must list voter eligibility requirements, and a signed attestation by the applicant that he or she meets such requirements (Section 1973gg-3(c)(2)(C)). A change of address for a driver's license must also serve as a change of address for voter registration (Section 1973gg-3(d)). The motor vehicle licensing agency must transmit the voter registration application to the state election official within ten days, or, in some cases, five days (Section 1973gg-3(e)).

NVRA also requires that states designate other state offices to serve as voter registration agencies, including all offices that provide public assistance and that administer state-funded programs providing services to persons with disabilities (Section 1973gg-5(a)(2)). States must also designate additional state agencies of the state's own choosing to serve in this capacity and may also designate federal and nongovernmental offices upon their agreement (Section 1973gg-5(a)(3)). Not only must all of these agencies have at their disposal mail-in registration forms, employees at *all* of these agencies must distribute voter registration applications with each application for the services which the office normally provides, as well as offer assistance to applicants in completing voter registration forms (Section 1973gg-5(a)(6)(A)). All voter registration applications must be transmitted to the state election official within ten days, or, in some cases, five days.

Finally, NVRA allows mail-in registration to continue (Section 1973gg-4). However, even here, the federal government is not content with existing state processes. Rather, "States shall accept and use the mail voter registration application prescribed by the Federal Election Commission." *Id.* Alternatively, states may use their own form--so long as that form meets federal criteria as delineated in the act (Section 1973gg-4(a)).

State employees must keep voter registration records confidential and not use such records for purposes other than voter registration (Sections 1973gg-3(c)(2)(D) and 1973gg-5(a)(6)(B)). States are given limited means by which they can purge voter registration records (Section 1973gg-6(d)).

Naturally, NVRA makes it clear that this painstakingly detailed voter registration process applies only to *federal* elections, since Congress is admirably sensitive to the fact that it may not prescribe procedures for state elections. This presumes that, after going to the time, trouble, and expense of complying with NVRA, states would deem it prudent to prescribe a separate procedure for their own state elections.

All executive agencies in California, including the motor vehicle licensing agency and the welfare agency, were created by acts of the Legislature. The statutes creating these agencies and defining their powers and duties appear in the California codes. For example, in California, the motor vehicle licensing agency is the Department of Motor Vehicles (DMV), created by statute in 1959 (California Vehicle Code § 1500). Since DMV was created, the Legislature has amended and adopted numerous provisions relating to the functioning of that agency, but at no time has the California State Legislature delegated to DMV the authority to register voters.

California courts have faithfully adhered to the principle that administrative agencies are creatures of the Legislature that created them. The California Supreme Court, in *Morris v. Williams*, clearly enunciated the applicable rule:

[W]e here discharge our responsibility to determine whether the Agency has acted in obedience to the mandate of the Legislature or has ignored or violated it. ... [Regulations] must

conform to the legislative will if we are to preserve an orderly system of government.

Morris v. Williams, 67 Cal. 3d 733, 737 (1967). The California courts' adherence to the rules governing administrative agencies are not mere pacans to administrative form, but inhere in separation of powers principles: an executive agency may only exercise those powers that the legislative branch delegates to them. See, e.g., *Kugler v. Yocum*, 69 Cal. 2d 371, 375-76 (1968). Incidentally, California courts have specifically noted this limitation upon the DMV. *Addison v. Department of Motor Vehicles*, 69 Cal. App. 3d 486, 493 (1977).

Given the framework which the California State Legislature has erected over a period of many years to insure that these agencies operate within the guidelines established by the Legislature, it is clear that, had these agencies themselves attempted to promulgate the rules set out under Section 1973gg-3 of NVRA, the regulations would be held, under California law, void and of no effect.

If NVRA is to be given full force and effect, its practical effect is to act as "super"-enabling legislation, a delegation of federal duties under federal law directly to state executive agencies. Compliance with NVRA requires these agencies to administer a federal program entirely alien to the duties delegated to them by the state Legislature that created them.

In addition, NVRA provides for civil and criminal enforcement of its provisions (Sections 1973gg-9 and 1973gg-10). Under the civil right of action, both the United States Attorney General and private parties "aggrieved by a violation of this subchapter" "may bring a civil action in an appropriate district court for declaratory or injunctive relief" (Section 1973gg-9(a) and (b)(1) and (2)). This provision anticipates that state agencies, such as DMV, may be hailed

into federal court for violations of NVRA, a forum to which state agencies generally have never had to answer for their actions in the absence of questions of constitutional stature. The California Government Code, in fact, provides that actions of DMV (as well as the Department of Social Services and other agencies that may be called upon to meet the dictates of NVRA (Cal. Gov't Code § 11501)) are subject to state administrative adjudicatory procedures. Not so under NVRA. NVRA raises the prospect that state agencies will not merely have to submit to federal legislative power, but may be subjected to the entire panoply of federal power as exercised through its executive and judicial branches.

This intrusion by the federal government into the inner workings of state administrative bodies is unprecedented. The impact caused by NVRA is not merely or even primarily its drain on the state fisc. It is an imposition upon the citizens of the State of California who will be forced to wait in slower and longer lines at DMV, the welfare office, and other state agencies, to obtain the services which their elected state representatives have labored to provide. This Court should resolve whether any Article I power of Congress includes the power to force state executive agencies to take actions that are outside the scope of the state legislation that governs them and to expend for these federal purposes funds appropriated by the state Legislature for other state purposes.

II

THIS COURT SHOULD CLARIFY THE SCOPE OF CONGRESS' ARTICLE I, SECTION 4, ELECTIONS POWER

Article I, Section 4, of the United States Constitution reads:

The Times, Places and Manner of holding
Elections for Senators and Representatives, shall
be prescribed in each State by the Legislature

thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.

This Court has interpreted Section 4 broadly, stating that it grants Congress the "authority to provide a complete code for congressional elections, not only as to times and places, but in relation to notices, *registration*, supervision of voters, prevention of fraud, [etc.]." *Smiley v. Holm*, 285 U.S. 355, 366 (1932) (emphasis added). The Ninth Circuit in this case expands Congress' election powers further still, and in a manner that distinguishes it from previous exercises upheld by this Court. Because "no previous federal election laws are sufficiently analogous to [NVRA] for decisions on their constitutionality to dictate the outcome of the present case," *Association of Community Organizations for Reform Now v. Edgar*, 56 F.3d 791, 793 (7th Cir. 1995), this Court should determine whether Article I, Section 4's Times, Places and Manner clause gives Congress the power to enact NVRA.

Noting that the Times, Places and Manner power initially belongs to the states, the Ninth Circuit interprets the congressional override provision in Section 4 as giving Congress the power to *interfere* in the state's allocation of its agencies' responsibilities. It holds that the power to "make or alter such Regulations" is a grant to Congress not merely to prescribe its own election laws should it choose to occupy the field, but rather to invade the *state's* sovereign right to establish agencies and their governmental responsibilities as long as the invasion arose from the Congress' elections powers. *Voting Rights Coalition v. Wilson*, 60 F.3d 1411, 1415 (9th Cir. 1995). However superficially appealing such a textual argument is, it simply does not comport with the structure of the Constitution itself. Despite the Ninth Circuit's acknowledgment that the Tenth Amendment defines limitations on Congress' power in accord with this Court's

opinion in *New York v. United States*, 505 U.S. 144, 120 L. Ed. 2d 120 (1992) (*Voting Rights*, 60 F.3d at 1415), the Ninth Circuit finds in Article I, Section 4, a broader grant of power to Congress than Congress' plenary power over interstate commerce—in a provision that, by its very language, is primarily a grant of power to the *states*.

After all, Article I, Section 4, grants the power to regulate federal elections to the states in the first instance. The federal government's right to "make or alter" such regulations was designed as a last resort to protect the federal government from state interference with federal elections, not allow the federal government to interfere with the states.

Before ratification of the Constitution, the provision of Section 4 allowing Congress to make and alter election regulations was opposed as giving the national government too much power. Hamilton, however, countered with the argument that "an exclusive power of regulating elections for the National Government, in the hands of the State Legislatures, would leave the existence of the Union entirely at their mercy." *The Federalist No. 59*, at 300.

Hamilton understood the interests of the states and the national government as being frequently *at odds*, not *in concert*. While acknowledging that the possibility was slight that the states would bring about the dissolution of the union, Hamilton defended the congressional override provision as insuring the continued viability of the union, to be used by the national authority "whenever extraordinary circumstances might render that interposition necessary to its safety." *Id.* The constitutional argument centered not around whether the *states* should have the power to regulate elections, but on whether the *national government* should be given *any power whatsoever*. Hamilton argued that the provision was necessary as a check on any tendency of a state government to use its Times, Places and Manner power to the detriment of the union. *Id.* at 301. See also *U.S. Term Limits, Inc. v.*

Thornton, 514 U.S. ___, 131 L. Ed. 2d 881, 903-04 (1995). Hamilton framed the issue thus:

And as it is more consonant to the rules of a just theory to intrust the Union with the care of its own existence, than to transfer that care to any other hands; if abuses of power are to be hazarded, on the one side, or on the other, it is more rational to hazard them where the power would naturally be placed, than where it would unnaturally be placed.

Id. at 300.

Significantly, *Smiley*, on which the Ninth Circuit relied for its expansive interpretation of Congress' Article I, Section 4, powers, noted the way in which the Times, Places and Manner power could be implemented by Congress:

The phrase "such regulations" plainly refers to regulations of *the same general character* that the legislature of the State is authorized to prescribe with respect to congressional elections. In exercising this power, Congress may *supplement these state regulations or may substitute its own*.

Smiley, 285 U.S. at 366-67 (emphasis added). However broadly the Court interpreted the elections power in *Smiley*, there is no indication that it understood them to allow Congress the power to simply invade the internal workings of state government in any manner whatsoever to regulate federal elections.

It is not insignificant that the final decision reached by the Framers was to grant the Times, Places and Manner power to the *states*, in the first instance, and to the national government as a last resort. While the Ninth Circuit stated, consistent with opinions of this Court, that the purpose for Congress' exercising its election powers need not serve the

narrow purpose conceived of by Hamilton—to insure its own preservation (*Voting Rights*, 60 F.3d at 1414), that does not render the Framers' intentions completely devoid of relevance in reviewing Congress' exercise of its "make and alter" power. The Framers set up a federal system vesting limited power, via the Constitution, to the national government, on the one hand, and reserving all other power to the states or the people of the states on the other. After further memorializing this structure in the Tenth Amendment, it is incomprehensible how the Ninth Circuit finds, in the wording of Article I, Section 4's Times, Places and Manner clause, an intent by the Framers to provide to Congress the key which would unlock the door to state sovereignty.

However convenient or natural it seems that an organization such as DMV, or other state agencies which gather and process records of state residents, be utilized for the dual purpose of voter registration, the fact remains that the challenge here lodged by Governor Wilson would be identical had NVRA designated the state highway patrol as the body with which to carry out its mandates. This Court has been appropriately sensitive to the structure of the Constitution, no less than to its substance:

[T]he fact that a given law or procedure is efficient, convenient, and useful in facilitating functions of government, standing alone, will not save it if it is contrary to the Constitution. Convenience and efficiency are not the primary objectives—or the hallmarks—of democratic government

....

... [P]olicy arguments supporting even useful "political inventions" are subject to the demands of the Constitution which defines powers and,

with respect to this subject, sets out just how those powers are to be exercised.

Immigration and Naturalization Service v. Chadha, 462 U.S. 919, 944-45 (1983). The Ninth Circuit misperceives the Tenth Amendment challenge to NVRA as opposing the *fact* of Congress exercising its supreme power; clearly, Article I, Section 4, gives Congress broad powers to regulate the election of United States Senators and Representatives. However, consistent with the federalism and the Tenth Amendment, the Constitution requires that the federal government exercise this power in a *manner* that does not impinge upon state sovereignty.

III

THIS COURT SHOULD FURTHER DEFINE THE DIVISION BETWEEN STATE AND FEDERAL SOVEREIGNTY CLEARLY EMBODIED IN THE TENTH AMENDMENT

The Tenth Amendment to the United States Constitution provides:

The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.

In upholding NVRA, the Ninth Circuit held that the Tenth Amendment did not bar Congress from "conscript[ing] state agencies to carry out voter registration for the election of Representatives and Senators." *Voting Rights*, 60 F.3d at 1415. The court dismissed Governor Wilson's Tenth Amendment challenge, based on *New York*, determining that Congress' Article I, Section 4, powers were *functionally distinct* from Congress' commerce power. *Voting Rights*, 60 F.3d at 1415.

Further, it held that the Tenth Amendment had *no applicability* with respect to federal regulation of federal elections, however much it intruded into state sovereignty:

Even though the Act by its terms does not control the practices of voter registration for elections of state and local officials, its impact on such elections probably will be significant.

It is at this juncture that the sovereignty of the State of California under the Tenth Amendment becomes a constitutional concern.

Id. (emphasis added). In so holding, the Ninth Circuit construed a limitation upon the Tenth Amendment inconsistent with previous holdings of this Court.

Three years ago, this Court, in *New York*, held unconstitutional the "take title" provision of the Low-Level Radioactive Waste Policy Amendments Act of 1985 as violating the Tenth Amendment to the United States Constitution. *New York*, 505 U.S. at 150. In that case, as in this, the petitioners did not argue that Congress lacked the power to regulate; rather, they "contend[ed] only that the Tenth Amendment limits the power of Congress to regulate in the way it has chosen." *Id.* at 140.

The court below misconstrued the import of *New York*, holding that the limitation iterated there, regarding Congress' commerce powers, did not apply with respect to Congress' Times, Places and Manner power. *Voting Rights*, 60 F.3d at 1415. But the holding in *New York* relied not so much upon an examination of Congress' commerce powers, or even the Tenth Amendment, but on federalism as a fundamental principle upon which the United States was constituted:

Much of the Constitution is concerned with setting forth the form of our government, and the

courts have traditionally invalidated measures deviating from that form. The result may appear "formalistic" in a given case to partisans of the measure at issue, because such measures are typically the product of the era's perceived necessity. But the Constitution protects us from our own best intentions: It divides power among sovereigns and among branches of government precisely so that we may resist the temptation to concentrate power in one location as an expedient solution to the crisis of the day.

New York, 505 U.S. at 158. Contrary to the Ninth Circuit's understanding, *New York* specifically noted that Congress' Article I powers were limited in the *nature* of their exercise regardless of the particular grant of power under which Congress was legislating: "We have always understood that even where Congress has the authority under the Constitution to pass laws requiring or prohibiting certain acts, it lacks the power directly to compel the States to require or prohibit those acts." *Id.* at 144. Specifically, this Court enunciated the following principle:

[N]o Member of the Court has ever suggested that [a strong] federal interest would enable Congress to command a state government to enact state regulation. ... The Constitution instead gives Congress the authority to regulate matters directly and to pre-empt contrary state regulation. Where a federal interest is sufficiently strong to cause Congress to legislate, it must do so directly; it may not conscript state governments as its agents.

Id. at 151-52. These principles apply equally as well to petitioners' case. Indeed, because *New York* held that federalism concerns were not an incident of any particular grant of power under the Constitution, but inhered in the

very structure of the Constitution itself, NVRA, albeit enacted pursuant to Congress' Times, Places and Manner power, presents a distinction without a difference. If the Constitution prohibits Congress from forcing state legislatures to legislate, it follows that Congress cannot step into the shoes of the state Legislature and commandeer state agencies simply to do their bidding. Federalism is more than form; "[i]n the tension between federal and state power, lies the promise of liberty." *Gregory v. Ashcroft*, 501 U.S. 452, 115 L. Ed. 2d 410, 423 (1991).

The Ninth Circuit's interpretation of the Tenth Amendment displays other flaws which ought to be addressed by this Court. In acknowledging its sensitivity to the costs and inconveniences associated with implementation of NVRA, the court concedes the possibility that impositions occasioned by its implementation could rise to the level of a Tenth Amendment violation:

We foresee the possibility in which the district court will be asked to determine whether a certain implementation of the statute sought by the United States ... is properly resisted by the state on *substantial grounds* related to its sovereignty. Should such occasions arise, we would expect the district court to respond with an informed understanding of the duality of sovereignty imbedded within the Constitution of the United States.

Voting Rights, 60 F.3d at 1416 (emphasis added). The concession displays an underlying mistaken premise that sovereignty relies not on the *distinction* between the powers exercisable by the federal or the state government, but on the *degree* to which one power may intrude upon another. In adopting this approach, the Ninth Circuit intimates that sovereignty considerations amount to nothing more than the quantity of state funds being used to implement the federal

scheme. The Framers could hardly have intended that such a vital concept as federalism would be reduced to an accounting function. Justice Powell, dissenting from the holding in *Garcia*, was wary that such notions could ultimately compromise federalism principles:

[T]he harm to the States that results from federal overreaching under the Commerce Clause is not simply a matter of dollars and cents. ... Rather, by usurping functions traditionally performed by the States, federal overreaching under the Commerce Clause undermines the constitutionally mandated balance of power between the States and the Federal Government, a balance designed to protect our fundamental liberties.

Garcia, 469 U.S. at 572 (Powell, J., dissenting). Although *Garcia* spoke to whether federal funding of a local municipal transit system made it subject to federal regulation, Powell's observations are no less apropos to the present case: "Regardless of the willingness of the Federal Government to provide federal aid, the constitutional question remains the same: whether the federal statute violates the sovereign powers reserved to the States by the Tenth Amendment." *Id.* at 566 n.10 (Powell, J., dissenting).

The Ninth Circuit ignores the premise, clearly enunciated in *New York*, that is the essence of the Tenth Amendment: States retain their sovereignty despite the powers granted to the national government and despite the supreme stature of Congress' laws. By forcing state agencies to carry out federal prescriptions as to what constitutes good election policy, Congress has ignored the fundamental structure of our republic. Having once admonished Congress not to "cross[] the line distinguishing encouragement from coercion," *New York*, 505 U.S. at 149, this Court should not hesitate to "assume its constitutional responsibility" "to

reconcile [federalism] concerns in the final instance." *Garcia*, 469 U.S. at 589 (O'Connor, J., dissenting).

CONCLUSION

In *New York v. United States*, this Court stated, unequivocally, that

[s]tates are not mere political subdivisions of the United States. State governments are neither regional offices nor administrative agencies of the Federal Government. The positions occupied by state officials appear nowhere on the Federal Government's most detailed organizational chart. The Constitution instead "leaves to the several states a residuary and inviolable sovereignty."

New York, 505 U.S. at 158 (citation omitted).

Despite this precedent, the lower court upheld NVRA, which requires state agencies to carry out voter registration activities for federal elections. This case raises federalism concerns in a context as yet unaddressed by this Court.

The Ninth Circuit determined that Article I, Section 4, empowers Congress to "conscript state agencies to carry out voter registration for the election of Representatives and Senators" (*Voting Rights*, 60 F.3d at 1415) and rejected the argument based on *New York* that the Tenth Amendment bars the means Congress has chosen to implement its policies. *Id.* To the Ninth Circuit, the power granted to Congress under Section 4 to "make and alter [election] Regulations" is broader than Congress' Commerce power under Section 8.

To clarify the scope of Congress' Article I, Section 4, power and define the protections afforded to state sovereignty

under the Tenth Amendment, this Court should grant the petition for writ of certiorari.

DATED: December, 1995.

Respectfully submitted,

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No. 95-673

Supreme Court, U.S.

FILED

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IN THE SUPREME COURT OF THE UNITED STATES

OCTOBER TERM, 1995

PETE WILSON, GOVERNOR OF CALIFORNIA,
ET AL., PETITIONERS

v.

VOTING RIGHTS COALITION, ET AL.

ON PETITION FOR A WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

BRIEF FOR THE FEDERAL RESPONDENTS IN OPPOSITION

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QUESTIONS PRESENTED

1. Whether the National Voter Registration Act of 1993 (NVRA), 42 U.S.C. 1973gg et seq., is a constitutional exercise of Congress's power under the Elections Clause, U.S. Const. Art. I, § 4, to regulate the manner in which States administer elections for federal office.

2. Whether the NVRA is a constitutional exercise of Congress's power to enforce the Fourteenth and Fifteenth Amendments.

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OPINIONS BELOW

The opinion of the court of appeals (Pet. App. 1-12) is reported at 60 F.3d 1411. The opinion of the district court (Pet. App. 13-25) is reported at 878 F. Supp. 1324.

JURISDICTION

The judgment of the court of appeals was entered on July 24, 1995. The petition for a writ of certiorari was filed on October 23, 1995 (a Monday). The jurisdiction of this Court is invoked under 28 U.S.C. 1254(1).

STATEMENT

1. This case involves the State of California's federal constitutional challenge to the National Voter Registration Act of

1993 (NVRA or Act), 42 U.S.C. 1973gg et seq. (Supp. V 1993). The Act is designed to "increase the number of eligible citizens who register to vote in elections for Federal office." 42 U.S.C. 1973gg(b)(1) (Supp. V 1993). To that end, it establishes uniform, nationwide procedures for registering to vote in federal elections.

The Act requires States to accept voter registration applications "made simultaneously with an application for a motor vehicle driver's license," 42 U.S.C. 1973gg-2(a)(1) (Supp. V 1993), as well as with applications submitted at the offices of other state agencies, 42 U.S.C. 1973gg-2(a)(3) (Supp. V 1993). The latter agencies must include state public-assistance offices, "all offices in the State that provide State-funded programs primarily engaged in providing services to persons with disabilities," and other agencies designated by the State. 42 U.S.C. 1973gg-5(a) (Supp. V 1993). The Act also requires state election officials to accept voter registration applications submitted by mail. 42 U.S.C. 1973gg-4 (Supp. V 1993).

The Act also contains provisions to ensure the effective operation of the registration methods just described. It requires the employees of state motor vehicles offices to "include a voter registration application form for elections for Federal office as part of" every driver's license application. 42 U.S.C. 1973gg-3(c)(1) (Supp. V 1993). That voter registration form must inform applicants of the state's voter eligibility requirements and the penalties for submitting a false application; it may not require any information that duplicates information already required on the

driver's license application. 42 U.S.C. 1973gg-3(c)(2)(A) and (D) (Supp. V 1993). When applicants return their completed forms, the motor vehicles employees must forward the voter registration portion of the application to the "appropriate State election official" for processing. 42 U.S.C. 1973gg-3(e) (Supp. V 1993). Employees in the other designated state agencies must also include a federal voter registration form along with every application for the agency's benefits or services, and must forward completed applications to "the appropriate State election official" for processing. 42 U.S.C. 1973gg-5(a)(6) and (d) (Supp. 1993). In all instances, the relevant state election official determines whether the applicant is eligible to vote and makes the ultimate decision whether to place the registrant on the voting rolls. See H.R. Rep. No. 9, 103d Cong., 1st Sess. 8 (1993).

The NVRA contains several provisions protecting the integrity of the voting rolls in federal elections. It requires that voter registration forms set forth each eligibility requirement of state law and require the applicant to attest, under penalty of perjury, that he or she meets each requirement. 42 U.S.C. 1973gg-3(c)(2)(C), 1973gg-7(b)(2) (Supp. V 1993). It also requires States to "conduct a general program that makes a reasonable effort to remove the names of ineligible voters from the official lists of eligible voters" because of the death of the registrant or a change in the registrant's residence. 42 U.S.C. 1973gg-6(a)(4) (Supp. V 1993). In addition, it allows States to conduct a program for removing otherwise ineligible voters from the rolls. 42 U.S.C.

1973gg-6(b) and (c)(2)(A) (Supp. V 1993). Any program to protect the integrity of voter registration rolls, however, must be "uniform, nondiscriminatory, and in compliance with the Voting Rights Act of 1965," 42 U.S.C. 1973gg-6(b)(1) (Supp. V 1993), and may not purge voters from the rolls "by reason of the person's failure to vote," 42 U.S.C. 1973gg-6(b)(2) (Supp. V 1993). Finally, the Act makes fraudulent registration a federal crime. 42 U.S.C. 1973gg-10(2) (Supp. V 1993).

2. The Act became effective in California on January 1, 1995. See 42 U.S.C. 1973gg note (Supp. V 1993). On August 12, 1994, the Governor of California "order[ed] California state agencies to comply with the NVRA only 'to the extent [that] federal funding is made available for such purposes.'" Pet. App. 14. Because no non-matching federal funding is provided to implement the Act, the Governor's order required total noncompliance. *Id.* at 3.¹ On December 14, 1994, private plaintiffs filed one of the present actions in the United States District Court for the Northern District of California, seeking declaratory and injunctive relief requiring the State to comply with the Act. *Ibid.*; see 42 U.S.C. 1973gg-9. Shortly thereafter, the State sued the United States in

¹ The United States Departments of Agriculture and Health and Human Services have provided matching funds for the States' costs of implementing the NVRA with respect to applicants for benefits under the AFDC, WIC, and food stamps programs. See H.R. Rep. No. 9, *supra*, at 11 (expressing intent that such matching funds be provided). In addition, the NVRA provides for reduced postal rates for mailings required by the Act. See 39 U.S.C. 3629 (Supp. V 1993); see also 42 U.S.C. 1973gg-6 note (Supp. V 1993). In the absence of state expenditures, however, the Act does not provide for federal funding of the NVRA's implementation.

the same court, seeking a declaration that the Act violates the federal Constitution and an injunction barring its enforcement. Pet. App. 15. The United States filed a counterclaim in the State's action, seeking an injunction to require the State to comply with the Act. Ibid. After the two actions were consolidated, the parties moved for preliminary injunctions. Ibid. The district court consolidated the preliminary injunction hearing with a trial on the merits of the constitutional issues. Ibid.; see Fed. R. Civ. P. 65(a)(2).

After trial, the district court issued a written decision rejecting the State's constitutional challenges to the Act. Pet. App. 13-25. The court held that the NVRA is a valid exercise of Congress's power under the Elections Clause, U.S. Const. Art. I, § 4, to regulate the "Times, Places and Manner of holding" elections for federal office. Pet. App. 16-19. The court also held that the Act does not violate the Tenth Amendment since, when acting under the Elections Clause, Congress "may directly regulate the state's manner and means of voter registration without invading an area reserved to the states." Id. at 18. The court permanently enjoined the State from failing to comply with the Act and ordered it to come forward with "a proposed plan for implementing the NVRA." Id. at 21.

3. The court of appeals affirmed. Pet. App. 1-12. Relying in part on the Seventh Circuit's decision upholding the Act in Association of Community Organizations for Reform Now (ACORN) v. Edgar, 56 F.3d 791 (1995), the court determined that Congress's

power over the "Times, Places and Manner of holding" elections for federal office includes the power to regulate voter registration procedures. Pet. App. 5. Based on that determination, the court held that "the Act * * *, on its face, fits comfortably within" Congress's power under the Elections Clause. Id. at 7.

The court of appeals rejected the State's argument that the NVRA violates the Tenth Amendment principles articulated in New York v. United States, 505 U.S. 144 (1992). The court observed that New York held that "Congress could not impose on the states the burden of exercising its power under the Constitution to regulate interstate commerce." Pet. App. 8. The court determined that the State's reliance on New York was "flaw[ed]," because, "unlike the commerce power in Article I, section 8," the Elections Clause "empowers Congress to impose on the states precisely the burden at issue." Pet. App. 8.

The court of appeals emphasized that its decision concerned "an as yet unapplied statute." Pet. App. 4. The court assumed that "interpretive or constitutional issues that might arise in the implementation of the Act do not impair our analysis of the Act's facial constitutionality." Ibid. As had the Seventh Circuit in ACORN, the court directed the district court "to approach its task of implementation with an 'adequate sensitivity to the principle of federalism.'" Pet. App. 12 (quoting ACORN, 56 F.3d at 798). The panel retained jurisdiction to consider any subsequent appeals. Pet. App. 12.

ARGUMENT

The court of appeals correctly held that the NVRA is a valid exercise of Congress's power under the Elections Clause (U.S. Const. Art. I, § 4) and does not violate the Tenth Amendment. The Ninth Circuit's decision accords with the only other court of appeals decision to address the constitutionality of the Act, Association of Community Organizations for Reform Now (ACORN) v. Edgar, 56 F.3d 791 (7th Cir. 1995), and with all of the district court decisions addressing that subject.²

1. The court of appeals correctly held that Congress had the power to enact the NVRA under the Elections Clause, U.S. Const. Art. I, § 4. See Pet. App. 7; accord ACORN v. Edgar, 56 F.3d at 793-795. That Clause provides:

The Times, Places and Manner of holding Elections for Senators and Representatives, shall be prescribed in each State by the Legislature thereof; but the Congress may at any time by Law make or alter such Regulations, except as to the Places of chusing Senators.³

A natural reading of the term "Manner of holding Elections"

² ACORN v. Miller, Nos. 4:95-cv-45, 1:95-cv-184 & 1:95-cv-386 (W.D. Mich. Dec. 13, 1995); Condon v. Reno, Civ. Nos. 3:95-192-0 & 3:95-345-0 (D.S.C. Nov. 20, 1995); Virginia v. United States, No. 3:95CV357 (RLW) (E.D. Va. Oct. 18, 1995); ACORN v. Ridge, Nos. Civ. A. 94-7671 & Civ. A. 95-382, 1995 WL 136913 (E.D. Pa. Mar. 30, 1995); see also League of Women Voters v. Graves, No. 95-2350-KHV (D. Kan. Nov. 30, 1995) (granting preliminary injunction requiring Kansas to comply with NVRA).

³ The Elections Clause does not refer to presidential elections. As the Seventh Circuit observed, however, this Court has construed Article II, Section 2, which does address that subject, "to grant Congress power over Presidential elections coextensive with that which Article I section 4 grants it over congressional elections." ACORN v. Edgar, 56 F.3d at 793 (citing Burroughs v. United States, 290 U.S. 534 (1934)); see also Buckley v. Valeo, 424 U.S. 1, 13 n.16 (1976).

includes the process of registering voters. As this Court stated in Smiley v. Holm, 285 U.S. 355, 366 (1932):

[T]hese comprehensive words ["Times, Places and Manner"] embrace authority to provide a complete code for congressional elections, not only as to times and places, but in relation to notices, registration, supervision of voting, protection of voters, prevention of fraud and corrupt practices, counting of votes, duties of inspectors and canvassers, and making and publication of election returns; in short, to enact the numerous requirements as to procedure and safeguards which experience shows are necessary in order to enforce the fundamental right involved.

See also Ex parte Siebold, 100 U.S. (10 Otto) 371, 379-380 (1880) (upholding a statute providing for federal supervision of a state's voter registration process as a proper exercise of the "Times, Places and Manner" authority); ACORN v. Edgar, 56 F.3d at 793 ("Times, Places and Manner" includes process of registration). Thus, the NVRA's adoption of uniform, nationwide procedures for registering to vote in elections for federal office falls squarely within the scope of the Elections Clause.

By virtue of the Elections Clause, the conduct of federal elections is "one of the few areas in which the Constitution expressly requires action by the States." U.S. Term Limits, Inc. v. Thornton, 115 S. Ct. 1842, 1855 (1995). The Elections Clause provides "that the state legislatures 'shall' prescribe the details necessary to hold congressional elections." Id. at 1883 (Thomas, J., dissenting) (quoting U.S. Const. Art. I, § 4); see also Siebold, 100 U.S. (10 Otto) at 388 ("It is the duty of the States to elect representatives to Congress."). As the court of appeals held, that obligation is one that the Constitution contemplates the

States will bear at their own expense. Pet. App. 9; accord ACORN v. Edgar, 56 F.3d at 794.

Although the States have the initial obligation to set up procedures for elections for federal office, Congress has "ultimate authority" over federal election procedures. U.S. Term Limits, 115 S. Ct. at 1899 (Thomas, J., dissenting). Thus, even when States prescribe their own procedures, Congress retains "a general supervisory power over the whole subject." Siebold, 100 U.S. (10 Otto) at 387. The Clause expressly empowers Congress "at any time" to "make" its own regulations or to "alter" the States' regulations. As this Court has explained (Siebold, 100 U.S. (10 Otto) at 383-384):

If [Congress] only alters, leaving, as manifest convenience requires, the general organization of the polls to the State, there results a necessary co-operation of the two governments in regulating the subject. But no repugnance in the system of regulations can arise thence; for the power of Congress over the subject is paramount. It may be exercised as and when Congress sees fit to exercise it.

It is clear that, when Congress "alters" a State's rules, the state officials remain responsible for carrying them out.⁴ That is also true when Congress makes its own rules, for state officials owe duties "as well to the United States as to the State. This necessarily follows from the mixed character of the transaction, --

⁴ See ACORN v. Edgar, 56 F.3d at 795:

The first sentence [of the Elections Clause], remember, requires the states to create and operate * * * a system [for electing federal officials] and the second authorizes Congress to alter the state's system -- but it is still the state's system, manned by state officers and hence paid for by the state.